FINAL LETTER OF DEMAND

This is a formal demand for payment. Please do not ignore it. It sets out what you owe, how the figure is made up, what we require you to do, and exactly what will happen if you do not do it. It also sets out what we may not and will not do to you.

If you cannot pay the full amount, read section 6 before the deadline. There is a way out of this that does not involve a court.

1. WHO THIS DEMAND IS FROM AND WHO IT IS TO

	Detail
From	Quickserve Financial Services CC, trading as QuickServe Cashloan, a cash-loan (microlending) business
Our address	3403 Danger Ashipala Street, Swakopmund, Namibia
Our contact	+264 81 281 9840, erastusmatheus3@gmail.com
To	**[BORROWER FULL NAME]**, Namibian ID number **[ID NUMBER]**
Your chosen address for notices	**[BORROWER CHOSEN ADDRESS]**
Your other contact details on our file	**[MOBILE NUMBER]**, **[EMAIL ADDRESS]**
Date of this letter	**[DD/MM/YYYY]**

2. THE AGREEMENT THIS DEMAND IS ABOUT

2.1 This demand arises out of a written microlending loan agreement between us. The particulars are:

Item	Detail
Loan reference	**[LOAN REFERENCE]**
Date the loan agreement was signed	**[DD/MM/YYYY]**
Place it was signed	**[PLACE]**
Date the loan amount was paid out to you	**[DD/MM/YYYY]**
Loan amount paid out	N$ **[AMOUNT]**
Interest rate agreed, charged once for the loan term	**[RATE]** % of the loan amount
Service fee agreed	N$ **[AMOUNT]**
Original due date for repayment	**[DD/MM/YYYY]**
Number of signed extension addenda	**[NUMBER]**
Current due date after any extension	**[DD/MM/YYYY]**
Days overdue as at the date of this letter	**[NUMBER]**

2.2 The loan amount, the interest and the service fee became due and payable on the due date shown above. They have not been paid in full.

3. THE AMOUNT WE DEMAND

3.1 The amount you owe is made up as follows, calculated to **[DD/MM/YYYY]**:

Item	Amount
Loan amount paid out to you on **[DD/MM/YYYY]**	N$ **[AMOUNT]**
Interest at **[RATE]** % of the loan amount, charged once for the loan term	N$ **[AMOUNT]**
Service fee	N$ **[AMOUNT]**
Extension charges under **[NUMBER]** signed extension addenda	N$ **[AMOUNT]**
Default interest, at not more than 5% of the overdue amount, from **[DD/MM/YYYY]** to **[DD/MM/YYYY]**	N$ **[AMOUNT]**
Total of the loan amount and all charges	**N$ [AMOUNT]**
Less: total payments received from you, itemised in 3.2	N$ **[AMOUNT]**
TOTAL AMOUNT NOW DEMANDED	**N$ [AMOUNT]**

3.2 We have credited every payment we received from you:

Date received	Amount	Method	Reference
[DD/MM/YYYY]	N$ **[AMOUNT]**	**[METHOD]**	**[REFERENCE]**
[DD/MM/YYYY]	N$ **[AMOUNT]**	**[METHOD]**	**[REFERENCE]**
[DD/MM/YYYY]	N$ **[AMOUNT]**	**[METHOD]**	**[REFERENCE]**
Total paid by you	**N$ [AMOUNT]**		

3.3 A full statement of account, showing every charge raised and every payment received with a running balance, is attached to this letter. It is free of charge.

3.4 Every payment has been applied first to the interest and the service fee, and then to the loan amount, as your loan agreement provides.

4. WHAT WE REQUIRE YOU TO DO, AND BY WHEN

4.1 Pay the full amount of **N$ [AMOUNT]** on or before **16:00 on [DD/MM/YYYY]**. That date is ten (10) business days after the date of this letter.

4.2 If you have already paid this amount in the last few days, send us the proof of payment and ignore this letter. We will confirm receipt in writing.

5. HOW TO PAY

Method	Details
Bank transfer or EFT	**[BANK NAME]**, account name **[ACCOUNT NAME]**, account number **[ACCOUNT NUMBER]**, branch code **[BRANCH CODE]**
Reference to use	**[LOAN REFERENCE]**
Cash	3403 Danger Ashipala Street, Swakopmund, Namibia, during **[OFFICE HOURS]**
Send proof of payment to	WhatsApp +264 81 281 9840 or email erastusmatheus3@gmail.com

5.1 Nobody is authorised to collect this money from you anywhere else, and no member of our staff may ask you to pay into a personal account. If anyone does, report it to us and to NAMFISA.

6. IF YOU CANNOT PAY IN FULL — READ THIS BEFORE THE DEADLINE

6.1 If you cannot pay the whole amount by the deadline, contact us before the deadline on **+264 81 281 9840** or erastusmatheus3@gmail.com. We would rather be paid over time than go to court.

6.2 We can put the balance into instalments you can afford. That is recorded in an *Acknowledgement of Debt and Payment Arrangement*, which we both sign. While you keep to it:

- we add no further interest, no further service fee and no further charges of any kind;

- we take no legal steps and hand the account to nobody; and
- you pay a fixed amount on fixed dates until the balance is cleared.

6.3 Bring or send your latest payslip and your last three months of bank statements so we can set an instalment you can genuinely afford. An arrangement you cannot keep helps neither of us.

6.4 If you sign an arrangement and keep to it, everything in section 8 falls away.

7. IF YOU BELIEVE THIS AMOUNT IS WRONG

7.1 If you think the figures in section 3 are wrong, tell us in writing before the deadline and give your reasons. Send it to erastusmatheus3@gmail.com or deliver it to 3403 Danger Ashipala Street, Swakopmund, Namibia.

7.2 We will check our records, reply to you in writing, and take no further step on this account until we have replied.

8. WHAT HAPPENS IF THE DEADLINE PASSES

8.1 This letter is the written notice we must give you before either of the steps in 8.2 and 8.3. We give you that notice now.

8.2 **Handing the account over.** We may hand this account to a debt collector or to an attorney for collection. The Microlending Act 7 of 2018 requires us to tell you before we do this, and this letter tells you.

8.3 **Legal proceedings.** We may issue a summons out of the Magistrates' Court for the district in which you live or work. If the court grants judgment against you, you will owe the amount claimed plus legal costs, the judgment will be recorded against your name, and the debt will remain claimable for thirty years instead of three.

8.4 **Costs.** Your loan agreement makes you liable for our costs of enforcing it on the attorney-and-own-client scale, including collection commission, tracing costs and disbursements. Those costs are added to what you owe. They are not unlimited: they must be assessed by the court or its taxing master, and you may object to any item you believe is unreasonable.

8.5 **Salary deductions, only after a court order.** If judgment is granted, we may apply for an emoluments attachment order under section 65J of the Magistrates' Courts Act 32 of 1944. That is a court order instructing an employer to deduct an amount from an employee's salary. We can obtain one only if you consent in writing or if the court authorises it after enquiring into your means, and the amount is limited to what the court allows. Until a court grants judgment and makes such an order, we have no right to touch your salary and we will not ask your employer to deduct anything.

8.6 **Credit bureau.** Where we report to a credit bureau, non-payment may be reported. This can affect your ability to obtain credit elsewhere, including from banks.

8.7 Every step in this section costs you money you do not have to spend. Paying by the deadline, or signing an arrangement you can afford, avoids all of them.

9. WHAT WE WILL NOT DO

9.1 We will not lay a criminal charge against you. Not repaying a loan is a civil matter in Namibia, not a crime. Anyone who tells you otherwise is wrong.

9.2 We will not contact your employer about this debt. The only exceptions are your own written permission, or a court order after judgment as described in 8.5.

9.3 We will not keep or use your bank card, your PIN, your original Namibian ID, your original passport or your original driver's licence. Section 23(1)(f) of the Microlending Act 7 of 2018 forbids it. We hold none of these, and we will never ask for them.

9.4 We will not take your property. Property may only be attached by the messenger of the court, under a court order, after judgment.

9.5 We will not discuss your account with your family, your neighbours, or in any group chat, and we will not post about it anywhere.

9.6 We will not threaten you, insult you or shame you, and we will not instruct anyone else to.

10. INTEREST AND CHARGES FROM HERE

10.1 Default interest is charged at not more than 5% of the amount overdue, and for not more than three months in total. After three months, no further default interest is added to this account.

10.2 Interest and charges stop growing once the unpaid interest and charges equal the loan amount still outstanding. Lawyers call this the *in duplum* rule. In plain words, the charges can never grow to more than the loan money you still owe.

10.3 We may not charge more than the maximum finance charges the law allows a microlender to charge. If any amount demanded in this letter is ever found to exceed that maximum, the excess is not owed and will be refunded to you.

10.4 If a court grants judgment, interest on the judgment debt will run at the rate agreed in your loan agreement or, failing that, at the rate prescribed under the Prescribed Rate of Interest Act 55 of 1975, from the date of this demand or the date of service of the summons to the date of final payment.

11. YOUR RIGHTS ON THIS ACCOUNT

11.1 You may ask for a statement of account at any time. The first copy is free, and a duplicate copy costs no more than N$2.00 per page.

11.2 You may settle early or pay in extra amounts at any time, without penalty. On early settlement we may charge interest and fees only in proportion to the number of days you actually had the money.

11.3 You may ask us for a copy of the Microlending Act 7 of 2018, the regulations and the NAMFISA microlending standards, and for our complaints procedure and complaint form. We provide these free.

11.4 You may dispute the amount, as set out in section 7.

12. IF YOU ARE NOT HAPPY WITH HOW WE HANDLE THIS

12.1 Complain to us first, in writing, to erastusmatheus3@gmail.com or 3403 Danger Ashipala Street, Swakopmund, Namibia, addressed to the Principal Officer, **[PRINCIPAL OFFICER NAME]**. We will acknowledge within **[NUMBER]** business days and reply within **[NUMBER]** business days.

12.2 If we do not resolve it, take the complaint to NAMFISA. Ask us for a NAMFISA Complaint Intake Form and we will give you one free of charge.

NAMFISA	Contact details
Address	51-55 Werner List Street, Gutenberg Plaza, Windhoek
Postal	P O Box 21250, Windhoek
Toll free	0800 290 500
Email	complaints@namfisa.com.na

12.3 Complaining to us or to NAMFISA does not stop the deadline in section 4 running. If you dispute the amount, use section 7 as well.

13. DELIVERY OF THIS LETTER

13.1 This letter is delivered to the address you chose in your loan agreement as your *domicilium citandi et executandi*. That Latin phrase simply means the address you gave us for the delivery of notices and legal documents. Delivery at that address counts as delivery to you, whether or not you are there at the time.

13.2 If that address has changed, you must tell us in writing. Until you do, we are entitled to keep using it.

13.3 A copy of this letter is also being sent to you by **[WHATSAPP / EMAIL / POST]** as a courtesy. The delivery at your chosen address is the delivery that counts.

Yours faithfully

The Lender	
Signature	.....
Full name	**[SIGNATORY FULL NAME]**
Capacity	**[CAPACITY]**
For	Quickserve Financial Services CC, trading as QuickServe Cashloan
Date	**[DD/MM/YYYY]**
Place	**[PLACE]**

Attached: Statement of account for loan **[LOAN REFERENCE]**, showing all charges raised, all payments received and the balance outstanding.

Delivery record — for our file

Item	Detail
Delivered to the chosen address by	**[HAND / SHERIFF / REGISTERED POST]**
Date and time delivered	**[DD/MM/YYYY]**, **[TIME]**
Delivered by	**[STAFF OR SERVER FULL NAME]**
Proof kept	**[SIGNED RECEIPT / POST SLIP NUMBER / RETURN OF SERVICE]**
Courtesy copy sent by	**[WHATSAPP / EMAIL]**, on **[DD/MM/YYYY]** at **[TIME]**
Deadline for payment diarised	**[DD/MM/YYYY]**